

(Kempner)

Dep. - 3

Trial Attorney (Sr. Trial Counsel)

SMC05-SCCWC

P-910-8

Office, Chief of Counsel for War Crimes

Office of the Chief of Counsel

(Deputy Chief Counsel)

E. Jane Hamell 2/17/47

Thomas F. Carson

Is one of six Sr. Trial Counsels who will be in complete charge of a major case (6 will be running simultaneously). Each case will involve 5-10 defendants, and will require 1-3 trial teams composed of 2-10 attorneys and 1-10 research analysts to complete the final stages of preparation. Examples are the prosecution of all leaders in the Farben or Krupp industries, the spoliation of certain industries in France, the financing of the German Army, the usurpation of large Jewish industries, etc.

Is in complete charge of the final preparation of a case, the planning of the case and the presentation in court. This involves supervision over the selection, interrogation, and cross-examination of witnesses, the writing of briefs, determination of evidence to be used, sequence of presentation, pre-trial interrogations, the determination of the legal principle(s) involved, rebuttals and the summaries. Will personally appear in court to conduct prosecution, or will be responsible for court prosecutions presented by Associate Prosecutors (when incumbent is responsible for more than one major case at a time.)

Personally, or through Associate Prosecutor, determines assignments of other attorneys and research personnel who are engaged in discovering and analyzing evidence and formulating parts of a major case.

NOTE: P-8 is based upon the fact that these trials are to a great extent precedent-making, that they involve determination of new legal concepts, and that the scope of legal activity and research required is the greatest in the European Theater. PCB-18 contains comparison which validate this grade. The cases for the most part, are very complex in nature. One of the most difficult tasks will be to determine the 400 most important war criminals of approximately 2500. This will be the responsibility of the legal staff, and the correct selection will determine, to a great extent, the success or failure of the trials from the point-of-view of justice.